

# STATE OF NEW YORK

6316--B

2025-2026 Regular Sessions

## IN SENATE

March 10, 2025

Introduced by Sen. SANDERS -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law and the state finance law, in relation to solid waste removal invoices and directing penalties and fines related to such invoices to be deposited into the environmental protection fund

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section  
2 392-k to read as follows:

3 § 392-k. Solid waste removal invoices. 1. For the purposes of this  
4 section, the following terms shall have the following meanings:

5 (a) "Estimated full cost" shall mean a good faith projection of the  
6 expected full cost.

7 (b) "Full cost" shall mean the total price, including any service  
8 charges and additional fees, of waste removal services.

9 (c) "Waste removal services" shall mean the proper removal and  
10 disposal of solid waste by a waste hauler for a customer on a one-time  
11 basis.

12 (d) "Waste hauler" shall mean any person registered or permitted by  
13 the department of environmental conservation to transport solid waste.

14 2. Any waste hauler that provides waste removal services shall:

15 (a) Inform a customer of the estimated full cost waste removal  
16 services may cost, presented in a range from lowest to highest amount,  
17 including the cost per unit of weight, prior to the provision of waste  
18 removal services; and

19 (b) Provide such customer with an invoice of the full cost of such  
20 waste removal services immediately after the completion of such waste  
21 removal services; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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1 (c) Provide such customer with an itemized receipt following payment  
2 for such waste removal services.

3 3. Each invoice required pursuant to paragraph (b) of subdivision two  
4 of this section shall contain the following notice:

5 "THIS INVOICE IS SUBJECT TO THE PROVISIONS OF SECTION 392-k OF THE  
6 GENERAL BUSINESS LAW."

7 4. Any person who violates any provision of this section shall be  
8 liable for a civil penalty not to exceed five hundred dollars for the  
9 first violation and not to exceed two thousand five hundred dollars for  
10 subsequent violations.

11 5. All civil penalties and fines collected for any violation of this  
12 section shall be deposited to the credit of the environmental protection  
13 fund established pursuant to section ninety-two-s of the state finance  
14 law.

15 § 2. Subdivision 3 of section 92-s of the state finance law, as  
16 amended by chapter 734 of the laws of 2021, is amended to read as  
17 follows:

18 3. Such fund shall consist of the amount of revenue collected within  
19 the state from the amount of revenue, interest and penalties deposited  
20 pursuant to section fourteen hundred twenty-one of the tax law, the  
21 amount of fees and penalties received from easements or leases pursuant  
22 to subdivision fourteen of section seventy-five of the public lands law  
23 and the money received as annual service charges pursuant to section  
24 four hundred four-n of the vehicle and traffic law, all moneys required  
25 to be deposited therein from the contingency reserve fund pursuant to  
26 section two hundred ninety-four of chapter fifty-seven of the laws of  
27 nineteen hundred ninety-three, all moneys required to be deposited  
28 pursuant to section thirteen of chapter six hundred ten of the laws of  
29 nineteen hundred ninety-three, repayments of loans made pursuant to  
30 section 54-0511 of the environmental conservation law, all moneys to be  
31 deposited from the Northville settlement pursuant to section one hundred  
32 twenty-four of chapter three hundred nine of the laws of nineteen  
33 hundred ninety-six, provided however, that such moneys shall only be  
34 used for the cost of the purchase of private lands in the core area of  
35 the central Suffolk pine barrens pursuant to a consent order with the  
36 Northville industries signed on October thirteenth, nineteen hundred  
37 ninety-four and the related resource restoration and replacement plan,  
38 the amount of penalties required to be deposited therein by section  
39 71-2724 of the environmental conservation law, all moneys required to be  
40 deposited pursuant to article thirty-three of the environmental conser-  
41 vation law, all fees collected pursuant to subdivision eight of section  
42 70-0117 of the environmental conservation law, all moneys collected  
43 pursuant to title thirty-three of article fifteen of the environmental  
44 conservation law, beginning with the fiscal year commencing on April  
45 first, two thousand thirteen, nineteen million dollars, and all fiscal  
46 years thereafter, twenty-three million dollars plus all funds received  
47 by the state each fiscal year in excess of the greater of the amount  
48 received from April first, two thousand twelve through March thirty-  
49 first, two thousand thirteen or one hundred twenty-two million two  
50 hundred thousand dollars, from the payments collected pursuant to subdi-  
51 vision four of section 27-1012 of the environmental conservation law and  
52 all funds collected pursuant to section 27-1015 of the environmental  
53 conservation law, all moneys required to be deposited pursuant to  
54 sections 27-2805 and 27-2807 of the environmental conservation law, all  
55 moneys collected pursuant to section 71-2730 of the environmental  
56 conservation law, all moneys required to be deposited pursuant to

1 section 27-3205 of the environmental conservation law, all moneys  
2 collected pursuant to section three hundred ninety-two-k of the general  
3 business law, and all other moneys credited or transferred thereto from  
4 any other fund or source pursuant to law. All such revenue shall be  
5 initially deposited into the environmental protection fund, for applica-  
6 tion as provided in subdivision five of this section.  
7 § 3. This act shall take effect immediately.